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August 31, 2026

VIA ELECTRONIC MAIL ONLY

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Counsel for Defendant Accurate Background LLC

Re: **Newanforbi v. Amazon.com Services, LLC, et al.** — Alameda County Superior Court, Case No. 26CV201554
Offer of a 14-Day Extension of Accurate Background LLC's Time to Respond — Through and Including September 14, 2026

Dear Ms. Stanzick and Mr. Drury:

We have not spoken. I identified you as counsel for Accurate Background LLC from the proof of service attached to the notice of appearance that Morgan, Lewis & Bockius LLP filed for Amazon.com Services, LLC on August 24, 2026. No appearance has been entered for Accurate Background in this action, and I have not heard from your office. I am writing before the day runs out rather than after.

The deadline. Accurate Background was personally served through its registered agent, CT Corporation System, on July 31, 2026 at 11:00 a.m. (Jaqueline Mejia, agent; 330 N. Brand Blvd., Suite 700, Glendale). Its responsive pleading is therefore due **today, August 31, 2026**: thirty days under Code of Civil Procedure section 412.20, subdivision (a)(3), with the thirtieth

day falling on Sunday, August 30 and rolling to today under section 12a.

The offer. I offer to extend Accurate Background's time to respond by fourteen (14) days, through and including **September 14, 2026**. My reason is practical. Under separate cover today I am sending you my opening demand to settle as to Accurate Background alone. I would rather your client spend the next two weeks evaluating that demand than briefing a demurrer it may not need to file.

Scope. So that nothing is misunderstood later, the offer is limited as follows:

- It applies to Accurate Background LLC only. Amazon.com Services, LLC is separately represented by Morgan, Lewis & Bockius LLP, was served the same day, and its response remains due today. I have not extended Amazon's time and am not offering to.
- It is a single fourteen-day extension. No further extension is implied and none should be assumed. Any additional extension would have to be agreed separately and in writing.
- It waives nothing. I reserve all rights and remedies, including the right to seek entry of default if no responsive pleading is on file on or before September 14, 2026.
- It is an agreement between the parties. Because no stipulation has been filed, the Court's docket will continue to show today's date. If you would prefer the extension on file, I will sign a stipulation and proposed order in whatever form you circulate.

How to accept. Because the deadline is today, please confirm by e-mail to bnn.cdl@gmail.com by **5:00 p.m. Pacific Time today**. If I do not hear from you, the offer lapses and I will treat the August 31 date as controlling — though if you come to me shortly afterward in good faith, I will hear you out rather than race to a default.

Section 430.41. I make this offer with the meet-and-confer statute in view. If Accurate Background intends to demur, Code of Civil Procedure section 430.41, subdivision (a)(2), required a meet-and-confer at least five days before the responsive date — that is, by August 26, 2026. No one from your office contacted me on or before that date, or at all. I would much rather your client have these fourteen days than have the parties litigate over a declaration reciting a good-faith attempt to meet and confer that did not happen. If you do intend to demur, I am available by telephone at any time this week and the extension is meant to make that conversation possible.

Two housekeeping items. First, please confirm that you are authorized to accept service of papers on Accurate Background's behalf and that you consent to electronic service under Code of Civil Procedure section 1010.6 at an address you designate; I will serve accordingly rather

than burden your client with duplicate hard copies. Second, please note that the Notice of Amount of Punitive Damages Sought under Code of Civil Procedure section 425.115 — $100,000.00 as to Accurate Background — was filed and accepted by the Court on August 6, 2026. Personal service of that notice is in process, and I will provide you a copy on request.

I note, without making anything of it, that Accurate Background was given precisely this courtesy in *Lerma v. Amazon.com Services, LLC, et al.*, No. 8:22-cv-01727 (C.D. Cal.), where the parties stipulated on October 21, 2022 to extend its time to answer (Dkt. 12). I extend it here in the same spirit and expect the same in return.

Please confirm receipt of this letter.

Very truly yours,



Brendan Ngehsi Newanforbi
Plaintiff, In Pro Per

Method of delivery: Electronic mail only.
cc (by e-mail): jstanzick@seyfarth.com; jdrury@seyfarth.com; file (Newanforbi v. Amazon.com Services, LLC, et al., Alameda Sup. Ct. No. 26CV201554)